

ASCII MASTER FLOW – PANEL 1/12: Rationale, evolution and the current eight

WHY UTS EXIST

Union responsibility + differentiated local democracy.

EVOLUTION

Part C/D arrangements -> 7th Amendment and 1956 reorganisation -> modern UT category.

2019: J&K and Ladakh created | 26 Jan 2020: DNH and DD merged.

CURRENT EIGHT

A&N | Chandigarh | DNHDD | Delhi | J&K | Ladakh | Lakshadweep | Puducherry.

WITH LEGISLATURE: Delhi, Puducherry, J&K | WITHOUT: the other five.

MUST REMEMBER: Separate Articles 239, 239A, 239AA, 239AB, 239B, 240, 241 and 246(4), then distinguish direct administration, statutory legislatures and Delhi's constitutionally entrenched NCT model.

ASCII MASTER FLOW – PANEL 2/12: Part VIII constitutional map

ARTICLE MAP

239 administration through President-appointed Administrator.

239A Puducherry legislature/CoM enabling power | 239B ordinance route.

239AA Delhi NCT scheme | 239AB Delhi failure-of-machinery route.

240 presidential regulations | 241 High Courts.

246(4): Parliament may legislate on every list for territory outside a State.

CORE RULE

A local UT legislature never removes Parliament's continuing competence.

ASCII MASTER FLOW – PANEL 3/12: Administrator, legislature and direct rule

PRESIDENT -> ADMINISTRATOR/LG -> UT ADMINISTRATION

The Administrator is the President's agent, not a Part VI Governor.

A State Governor acting as adjoining-UT Administrator acts independently of the State CoM.

THREE MODELS

Direct administration | statutory legislature | Delhi's constitutional NCT design.

ARTICLE 240

Specified-territory regulations have the force of an Act of Parliament.

ASCII MASTER FLOW – PANEL 4/12: High Courts and legislature-free UTs

HIGH COURT MAP

Delhi -> Delhi HC | J&K + Ladakh -> common J&K and Ladakh HC.

A&N -> Calcutta | Chandigarh -> Punjab & Haryana | DNHDD -> Bombay.

Lakshadweep -> Kerala | Puducherry -> Madras.

WITHOUT LEGISLATURE

A&N | Chandigarh | DNHDD | Ladakh | Lakshadweep.

Direct Union administration still coexists with MPs, courts, local bodies and legal remedies.

ASCII MASTER FLOW – PANEL 5/12: Delhi Article 239AA design

DELHI NCT

69th Amendment 1991 -> Article 239AA -> Assembly + CoM + LG.

ASSEMBLY FIELD

State and Concurrent Lists except Entries 1, 2 and 18, plus related 64, 65 and 66.

Reserved core: public order | police | land.

EXECUTIVE

Aid and advice is the rule inside the allotted field.

LG reference to President is exceptional, not routine.

Parliament retains overriding competence; Article 239AB is the breakdown route.

ASCII MASTER FLOW – PANEL 6/12: Delhi cases, services and statutory response

GNCTD aid-and-advice judgment (2018)

Representative government and aid/advice prevail within Delhi's allotted field.

Delhi services judgment (2023) – 11 MAY

Entry 41 services followed elected accountability outside the reserved fields.

ACT 19 OF 2023

NCCSA recommends transfers/postings; LG has statutory final say on disagreement.

28 AUGUST 2026 CONTROL

The Act remains operative; pending constitutional challenge is not invalidation.

CLOSE DISTINCTION: Delhi excludes State List Entries 1, 2 and 18 plus related 64-66; J&K excludes public order and police; Puducherry's statutory competence is over List II/III matters insofar as applicable to Union Territories. Parliament retains overriding UT competence.

ASCII MASTER FLOW – PANEL 7/12: Puducherry statutory model

ARTICLE 239A + GOVERNMENT OF UNION TERRITORIES ACT 1963

Statutory Assembly + CoM; Parliament retains UT-wide power.

Article 239B ordinance requires prior presidential instructions.

K. LAKSHMINARAYANAN (2018)

Central nomination of up to three members upheld; nominees possess voting rights.

ARTICLE 240

Regulation power is unavailable during normal Assembly functioning.

It revives during constitutionally qualifying suspension or dissolution.

ASCII MASTER FLOW – PANEL 8/12: Jammu and Kashmir and Ladakh after 2019

J&K REORGANISATION ACT 2019 – EFFECTIVE 31 OCTOBER

J&K -> UT with legislature | Ladakh -> UT without legislature.

J&K ASSEMBLY

State/Concurrent competence except public order and police; land is not generally excluded.

Budget, legislation and executive accountability operate under the Act and rules.

CURRENT

Elected Assembly and CoM function after 2024; Statehood not restored by 5 Sep 2026.

Ladakh has no legislature; safeguard demands are proposals, not enacted status.

ASCII MASTER FLOW – PANEL 9/12: Delhi, Puducherry and J&K compared

DELHI | constitutional Article 239AA | excludes public order, police, land.

PUDUCHERRY | Article 239A + 1963 Act | List II/III matters insofar as applicable to UTs.

J&K | 2019 Act + Article 239A application | excludes public order and police.

ALL THREE

Assembly + CoM + Administrator/LG; Parliament retains overriding UT competence.

DO NOT FLATTEN

Legal source, nominated membership, services control and referral rules differ.

ASCII MASTER FLOW – PANEL 10/12: Friction, accountability and reform

WHY FRICTION OCCURS

Split legislative field + divided officer control + referral/override powers.

ACCOUNTABILITY TEST

Exact field -> decision-maker -> staff/finance -> override -> court remedy.

REFORM

Clarify reserved fields | bound referrals | align officers with accountability.

Publish reasons and timelines | preserve judicial review | date every current claim.

VERDICT

Union safeguards are strongest when narrow, reasoned and democratically accountable.

ASCII MASTER FLOW – PANEL 11/12: PYQs, case law and close-option traps

PYQ 2018 GS-II Q11

Article 239AA -> 2018 ratio -> services sequel -> operative 2023 Act -> verdict.

PYQ 2025 GS-II Q4

2019 Act -> J&K Assembly field/functions -> LG/Parliament limits -> Statehood caveat.

CASE CONTROLS

GNCTD aid-and-advice judgment (2018).

Delhi services judgment (2023).

K. Lakshminarayanan (2018).

In Re: Article 370 of the Constitution (2023).

TRAPS

239AB != 239B | Chandigarh not Article 240-listed | Delhi exclusions != J&K exclusions.

ASCII MASTER FLOW – PANEL 12/12: Exam answer spine and current firewall

ANSWER SPINE

Classify model -> exact Article/statute -> local democratic mechanism.

Add Union safeguard -> institutional friction -> case/year -> calibrated reform.

EVIDENCE METHOD

Claim -> named authority -> mechanism -> dated control -> limitation -> verdict.

CURRENT FIREWALL – 28 AUGUST 2026

8 UTs | 3 legislatures | J&K elected but still UT.

GNCTD Act 2023 operative | challenge unresolved | proposal is not law.

THESIS

A UT legislature is real self-government, but not State-equivalent autonomy.

LEGAL/SOURCE LIMIT: India has eight Union Territories and three legislatures: Delhi, Puducherry and J&K. J&K has an elected government but remains a UT; Ladakh has no legislature. Act 19 of 2023 remains operative while the Delhi services constitutional challenge is unresolved.